

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 18, 2023. The complaint is directed against AYUNTAMIENTO DE JEREZ DE LOS CABALLEROS with NIF P0607000G (hereinafter, the complained party or the City Council).

The reasons on which the complaint is based are as follows:

On 03/08/22, the complainant submitted a complaint to the City Council of Jerez de los Caballeros for an alleged infringement of the GDPR and the LOPDGDD. Their full name and two surnames appeared, along with their Tax Identification Number (NIF), more than 20 times in the minutes of the Plenary session held on 03/08/21, having submitted allegations to various public exposure files.

Additionally, there were 14 references to their first surname.

On 03/22/22, the Data Protection Officer issued a report recommending that the City Council of Jerez de los Caballeros adopt a series of measures to adapt the content of the aforementioned minutes to the GDPR (anonymization of the name and surnames of the interested party and publication of the DNI number in accordance with the instructions established by the AEPD).

On 03/22/2022, the Mayor issued a resolution stating: "Recognize the right to object to the processing of personal data requested and immediately cease the processing of the data in the minutes of the plenary session of March 8, 2021, proceeding with the correct processing of the data of the interested party and republishing the minutes with the corresponding anonymization, as indicated in the report of the Data Protection Officer."

The complainant states that the pdf file published on the website of the complained party was modified on 07/01/22. However, the document has not been correctly anonymized, as their name and surnames are still visible. They also highlight that the NIF is temporarily marked with a black rectangle. Once the document is downloaded and opened with a simple PDF document reader, it allows selecting and copying the text marked in black, and when pasted, their complete NIF appears. By activating editing and pressing delete on the black rectangle, it disappears in all instances.

According to the complainant, their right to object has not been fulfilled as the minutes continue to be published without anonymization. They also emphasize that if you use the Secure Code of the document from the City Council's website / Electronic Headquarters / Document Validation, the original minutes are obtained, without any type of anonymization.

Along with the complaint, the following documents are submitted:

- The report issued by the Data Protection Officer dated March 22, 2022.
- The notification of the Resolution adopted by the Mayor-Presidency of the City Council recognizing the right to object to the processing of personal data requested by the complainant, ordering the cessation of the processing of the minutes of the plenary session of March 8, 2021, proceeding with the correct processing of the complainant's data and republishing the minutes with the corresponding anonymization, as indicated in the report of the Data Protection Officer.
- Guidance for the provisional application of the seventh additional provision of the LOPDGDD prepared by the AEPD.
- The minutes of the extraordinary session held by the Honorable Full City Council on March 8, 2021, published on the Electronic Headquarters of the City Council at the time of filing the complaint. In these minutes, the name and surnames of the complainant are visible. The Tax Identification Number (NIF) is obscured with a rectangular black shape. However, to remove this rectangular shape, it is enough to click the cursor on it.
- The minutes accessible through the CSV. The minutes accessed are not anonymized, and both the name and surnames, as well as the NIF of the complainant, are visible.

Subsequently, on February 14, 2024, the complainant filed a new complaint against the AYUNTAMIENTO DE JEREZ DE LOS CABALLEROS, regarding the publication of the name and surnames of the complainant in the minutes of the ordinary session of the Plenary held on November

30, 2023.

On May 20, 2024, the complainant submitted a new document to the AEPD invoking the provisions of Article 64.1 of the LOPDGDD, requesting that the complaint filed against the City Council of Jerez de los Caballeros on August 18, 2023, be upheld and that said City Council be urged to comply with the exercised right to object.

On June 3, 2024, the complainant filed a new complaint against the AYUNTAMIENTO DE JEREZ DE LOS CABALLEROS. In it, they indicated that on December 29, 2023, they had exercised the right to object against the aforementioned City Council due to the publication on its Electronic Headquarters of two minutes of the Plenary, relating to the plenary sessions held on July 20, 2023, and September 28, 2023, in which their full name and two surnames appeared.

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without anonymizing. Five months after the request, the City Council had not sent a response nor attended to the request.

SECOND: The AEPD has processed on September 27, 2023, the minutes of the extraordinary session held by the Honorable Full City Council on March 8, 2021, which was available on the Electronic Headquarters of the City Council of Jerez de los Caballeros, downloading its content.

THIRD: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), on October 2, 2023, this complaint was forwarded to the City Council of Jerez de los Caballeros, so that it could proceed with its analysis and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not acknowledged by the responsible party; the forwarding was reiterated on October 16, 2023, with the City Council of Jerez de los Caballeros accessing the content of the notification on October 26, 2023.

No response has been received to this forwarding letter.

FOURTH: On November 18, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FIFTH: The AEPD has processed on March 19, 2024, the minutes of the ordinary session held by the Honorable Full City Council on November 30, 2023, which was available in the Transparency section of the Electronic Headquarters of the City Council of Jerez de los Caballeros, downloading its content.

SIXTH: On June 12, 2024, the AEPD has processed the content of the transparency portal of the Electronic Headquarters of the City Council of Jerez de los Caballeros.

The diligence confirms that both the minutes of the extraordinary and urgent session of the Plenary on July 20, 2023, and the minutes of the ordinary session of the Plenary on September 28, 2023, referenced by the claimant in the document submitted to the AEPD on June 3, 2024, are published on that portal. In both cases, the term “Anonymized” appears next to the aforementioned minutes.

In both the minutes of the extraordinary and urgent session held by the Honorable Full City Council on July 20, 2023, and the minutes of the ordinary session held by the Honorable Full City Council on September 28, 2023, downloaded from the Electronic Headquarters of the City Council, two black rectangular figures (in the first case) and one rectangular figure (in the second) can be observed that hide the name and the two surnames of the claimant. However, if the text of these minutes is copied and subsequently pasted into a document, the content of the minutes can be seen without anonymizing, making it possible to visualize the name and the two surnames of the claimant.

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SEVENTH: On June 13, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the complained party for:

- The alleged infringement of Article 5.1.c) of the GDPR, classified under Article 83.5.a), and qualified as very serious for the purposes of prescription under Article 72.1 a) of the LOPDGDD.
- The alleged infringement of Article 32 of the GDPR, classified under Article 83.4 a), and qualified as serious for the purposes of prescription under Article 73 f) of the LOPDGDD.

EIGHTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the formulation of allegations had elapsed, it has been confirmed that no allegations have been received from the complained party. Article 64.2.f) of the LPACAP - a provision of which the complained party was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringements of the GDPR attributed to the complained party, and the sanctions that could be imposed. Therefore, considering that the complained party has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all the actions taken, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure,

PROVEN FACTS

FIRST: The complaining party exercised their right of opposition regarding their personal data published by the Town Hall of Jerez de los Caballeros in the minutes of the extraordinary session held by the Honorable Full Town Hall on March 8, 2021. Likewise, they requested that the Town Hall not publish their full name and two surnames on the Town Hall's website when making allegations to public exposure files:

Thus, the report from the Data Protection Officer of the Town Hall of Jerez de los Caballeros dated March 22, 2022 states:

"On March 8, 2022, Mr. (...) submitted to the General Registry of the Town Hall of Jerez de los Caballeros a written request to exercise the right of opposition regarding their personal data published in the minutes of the Full session held on March 8, 2021." (underlined by the AEPD).

On the other hand, the complaining party sent the Town Hall of Jerez de los Caballeros a document dated September 18, 2023, titled "Request for Data Minimization," in which, after referring to the need to respect the principle of data minimization (Article 5.1.c) of the GDPR), requested the following:

"I REQUEST:

I appeal to this Mayor's respect for Citizen Participation in public affairs, a right enshrined in the Spanish Constitution. And if deemed appropriate, I request that henceforth an order be given not to publish my full name and two surnames in the Official Bulletin of the Province of Badajoz or on the Town Hall's website when it is deemed appropriate to make allegations to the files on public display, as there is no legal obligation to do so, it could constitute an infringement of the GDPR to do so, and the resolution of the Data Protection Officer of the Town Hall is not to publish them." (underlined by the AEPD).

SECOND: The Data Protection Officer (DPO) of the Town Hall of Jerez de los Caballeros verified that the minutes of the extraordinary session held by the Honorable Full Town Hall on March 8, 2021 included the name and surnames of the complainant, as well as the complete NIF number, recommending that the Town Hall anonymize the name and surnames of the complaining party, so that their identity could not be recognized.

In this regard, the report from the Data Protection Officer of the Town Hall of Jerez de los Caballeros dated March 22, 2022 indicates:

"On March 8, 2022, Mr. (...) submitted to the General Registry of the Town Hall of Jerez de los Caballeros a written request to exercise the right of opposition regarding their personal data published in the minutes of the Full session held on March 8, 2021.

Once it was verified by the Data Protection Officer (DPO) of the Town Hall of Jerez de los Caballeros that, indeed, the personal data regarding the name and surnames of the interested party, as well as the complete number of the National Identity Document, were included in the aforementioned minutes, the following measures were recommended to the Town Hall:

- Removal of the content of the minutes as currently recorded.
- Modification of said content to adapt it to the GDPR, adopting the following measures:
 - a) Anonymization of the name and surnames of the interested party, so that their identity cannot be recognized.
 - b) Publication of the DNI number in accordance with the instructions provided by the Spanish Agency for Data Protection (AEPD) that can be consulted at the following link.

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It has been verified by the Data Protection Delegate (DPD) that the City Council has withdrawn the Minutes and confirmed that it will modify the same for its new publication.

(...)” (the underlining is from the AEPD).

THIRD: Despite the recommendation of the Data Protection Delegate (DPD) of the City Council of Jerez de los Caballeros reflected in the second proven fact, the City Council of Jerez de los Caballeros has published several minutes in which the name and surname of the complainant appear, and, in one of the cases, their Tax Identification Number (NIF):

1. Minutes of the extraordinary session held by the Honorable Full City Council on March 8, 2021:

The file contains two pieces of evidence obtained by the AEPD on September 27, 2023, related to the minutes of the extraordinary session held by the Honorable Full City Council on March 8, 2021.

The evidence shows that these minutes are downloadable. In the same, the name and both surnames of the complainant appear at least 19 times, and it contains numerous references to Mr. A.A.A.

Additionally, there are fifteen black rectangles that hide the complainant's NIF (these rectangles match those reflected by the complainant in their complaint letter dated August 18, 2023). Finally, in the aforementioned minutes, the complete CSV or Secure Verification Code is visible (the complainant has provided, along with their complaint of August 18, 2023, the full content of the minutes without any type of anonymization accessible through this CSV code).

2. Minutes of the ordinary session held by the Honorable Full City Council on November 30, 2023:

The file contains two pieces of evidence collected by the AEPD on March 19, 2024. The first shows that these minutes were published in the section called "Transparency" of the Electronic Headquarters of the City Council of Jerez de los Caballeros.

The second shows that in these minutes, the full name and both surnames of the complainant appear twice (pages 3 and 4), referring to allegations made by them regarding a budget modification that was to be approved by said Full Council.

3. Minutes of the extraordinary and urgent session held by the Honorable Full City Council on July 20, 2023, and Minutes of the ordinary session held by the Honorable Full City Council on September 28, 2023:

The file contains three pieces of evidence collected by the AEPD on June 12, 2024.

The first piece of evidence shows that both minutes were published on the Electronic Headquarters of said City Council, alongside the title the word "Anonymized" appears.

The evidence related to the Minutes of the extraordinary and urgent session held by the Honorable Full City Council on July 20, 2023, shows that the name and both surnames of the complainant appear twice in the same, hidden behind black rectangles. However, if a search is conducted in the document by entering the full name and surnames of the complainant, the search engine locates the name in the document on both occasions.

FOURTH: Despite the rectangular figures included by the City Council of Jerez de los Caballeros in several minutes in order to anonymize their content, if the text of these minutes is copied and then pasted into another document, the full content of the minutes can be seen, without anonymization.

This is reflected in the third piece of evidence collected by the AEPD on June 12, 2023. It shows that it is possible to copy part of the content of the Minutes of the extraordinary and urgent session held by the Honorable Full City Council on July 20, 2023, and paste it into another document. In this way, the two black rectangles disappear, and access to the full content, without anonymization, is possible. In this document, now without black rectangles, the full name and both surnames of the complainant can be read.

The ease with which the black rectangles used by the City Council can be removed has also been reflected by the complainant in the complaint letter of August 18, 2023, which includes images of the content of minutes with the black rectangles removed.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

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The City Council of Jerez de los Caballeros, like any other public entity, is obliged to comply with Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data -GDPR-, and with Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights -LOPDGDD- concerning the processing of personal data they carry out, understanding personal data as "any information relating to an identified or identifiable natural person."

An identifiable natural person is considered to be one whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, an identification number, location data, an online identifier, or one or several specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.

Furthermore, "processing" must be understood as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of making available, alignment, combination, restriction, erasure, or destruction."

The City Council of Jerez de los Caballeros would have processed the personal data of the claimant, specifically, the name and surname and the Tax Identification Number (NIF).

The City Council carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR:

"'data controller' or 'controller': the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the controller or the specific criteria for its designation may be provided for by the law of the Union or of the Member States."

III

Infringement of Article 5.1 c) of the GDPR

Article 5.1.c) of the GDPR, Principles relating to processing, states the following:

“1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed (‘data minimization’);”

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The claimant has submitted three complaints regarding four minutes of the Plenary of the City Council of Jerez de los Caballeros in which their personal data (name, surname, and NIF, in the first case; name and surname, in the case of three minutes relating to plenary sessions held in 2023) are included.

In relation to this issue, in the document dated September 18, 2023, titled “Request for Data Minimization” addressed by the claimant to the Mayor of the City Council of Jerez de los Caballeros, submitted by the claimant along with the complaint filed on February 14, 2024, it is stated:

“FOURTH. - During the past legislature, both the governing officials and the technicians who draft their resolutions, certificates, and minutes of the Plenary repeatedly included my personal data in the publications of the minutes of plenary sessions and in the announcements of the official bulletins. ON 08/08/2023, I requested the Provincial Council of Badajoz to anonymize my personal data from an announcement in the BOP and to stop being indexed in searches on its website.”

Subsequently, several documents in this file are referenced:

1. Report from the Data Protection Officer (DPO) of the City Council of Jerez de los Caballeros dated March 22, 2022 (proven fact two):

The aforementioned report, submitted by the claimant along with their complaint of August 18, 2023 as document 1, indicates the following:

“On March 8, 2022, Mr. (...) submitted to the General Registry of the City Council of Jerez de los Caballeros a written request to exercise the right of opposition regarding his personal data published in the minutes of the plenary session held on March 8, 2021.

Once it was verified by the Data Protection Officer (DPO) of the City Council of Jerez de los Caballeros that, indeed, the personal data relating to the name and surname of the interested party, as well as the full number of the National Identity Document, are included in the aforementioned minutes, the following measures are recommended to the City Council:

- Removal of the content of the minutes as currently recorded.
- Modification of said content to adapt it to the GDPR, adopting the following measures:
 - a) Anonymization of the name and surname of the interested party, so that their identity cannot be recognized.
 - b) Publication of the number of the DNI in accordance with the instructions issued by the Spanish Agency for Data Protection (AEPD) which can be consulted at the following link:

***[URL.1](#)

Once the minutes in question are adapted to the recommendations outlined here, they may be republished on the website of the City Council of Jerez de los Caballeros.

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It has been verified by the DPD that the City Council has withdrawn the Minutes and confirmed that it will modify the same for its new publication.

(...)" (the underlining is from the AEPD).

2. Resolution of the Mayor-Presidency of the City Council of Jerez de los Caballeros:

In document 1 submitted by the complainant, there is also a notification dated March 22, 2023, of a resolution from the Mayor-Presidency of the City Council of Jerez de los Caballeros with the following content:

"I am pleased to notify you that the Mayor-Presidency of this City Council has issued the following resolution, which I transcribe literally below for your knowledge, to which I attach the response from the data protection delegate to complete your request:

"In view of the request for opposition to the processing of personal data submitted by: (...)

Considering the report issued by the Data Protection Delegate of this City Council on March 22, 2022, and in accordance with the provisions of Articles 12 and 21 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the protection of natural persons with regard to the processing of personal data and the free movement of such data, and repealing Directive 95/46/EC, in Articles 12 and 18 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights, and in Article 21.1.s) of Law 7/1985, of April 2, Regulating the Bases of the Local Regime,

I RESOLVE

FIRST. To recognize the right to oppose the processing of personal data requested and to immediately cease the processing of the data in the minutes of the plenary session of March 8, 2021, proceeding with the correct processing of the data of the interested party and republishing the minutes with the corresponding anonymization, as indicated in the report of the Data Protection Delegate.

SECOND. To notify the interested party of the resolution in accordance with the provisions of Article 40 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations."

(the underlining is from the AEPD).

3. Complaint dated August 18, 2023, regarding the content of the minutes of the extraordinary session held by the Honorable Full City Council on March 8, 2021, published following the Resolution of the Mayor-Presidency of the City Council of Jerez de los Caballeros notified on March 22, 2022, and the DPD report from the same date:

The complainant has submitted a complaint regarding the content of the minutes of the extraordinary session held by the Honorable Full City Council on March 8, 2021, as it appeared on the Electronic Headquarters of the City Council of Jerez.

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of Jerez de los Caballeros at the time he submitted his complaint to the AEPD (August 18, 2023).

He has also sent the content of said minutes, accessible through the Secure Verification Code (CSV), which is included therein.

3.1. Minutes of the extraordinary session held by the Honorable Full City Council on March 8, 2021, published on the Electronic Headquarters of the City Council at the time the complaint was submitted to the AEPD:

In the minutes (document 2, submitted by the complainant along with the complaint of August 18, 2023), the name of the respondent appears at least 19 times along with their two surnames (proven fact three).

Additionally, the expression "Mr. A.A.A." is referenced numerous times, referring to the allegations presented by him.

In the aforementioned minutes, fifteen black rectangular figures have been used to obscure the DNI/NIF of the complainant. However, when hovering the cursor over the rectangular figure, the NIF of the respondent becomes visible, causing the rectangular figure that concealed it to disappear.

The file contains two pieces of evidence obtained by the AEPD on September 27, 2023, related to the

minutes of the extraordinary session held by the Honorable Full City Council on March 8, 2021. In said evidence, the publication of the mentioned minutes on the Electronic Headquarters of the City Council is observed, and the document is downloadable. In the mentioned minutes, the name and two surnames of the appellant are included, as well as fifteen black rectangles, which match those reflected by the complainant in their complaint, obscuring the NIF of the complainant (proven fact three).

3.2. Minutes of the extraordinary session held by the Honorable Full City Council on March 8, 2021, accessible through the CSV (Secure Verification Code):

The complainant has submitted to this Agency along with their complaint of August 18, 2023, document 3, which shows the content of the minutes, accessible through the Secure Verification Code (CSV) included therein.

The minutes, accessed through the aforementioned code, are the original minutes and are not anonymized. Both the name and surnames as well as the NIF of the complainant are visible; the fifteen black rectangular figures that concealed the NIF of the complainant do not appear.

4. Request for data minimization submitted by the complainant to the City Council of Jerez de los Caballeros on September 18, 2023:

The complainant sent to the City Council of Jerez de los Caballeros a document dated September 18, 2023, titled "Request for Data Minimization," in which, after referring to the need to respect the principle of data minimization (Article 5.1 c) of the GDPR), requested the following (proven fact one):

"REQUEST:

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I appeal to this Mayor's respect for Citizen Participation in public matters, a right enshrined in the Spanish Constitution. And if deemed appropriate, I request that henceforth you order not to publish in the Official Bulletin of the Province of Badajoz or on the City Council's website, my full name and two surnames when you consider it appropriate to make allegations to the files on public display, as there is no legal obligation to do so, it could constitute a violation of the GDPR to do so, and the resolution of the Data Protection Delegate of the City Council is not to publish them."

5. Recommendations from the

Transparency, Citizen Participation, Quality, and Citizen Attention Service of the Provincial Council of Badajoz regarding compliance with data protection regulations in publications of Plenary Agreements and Resolutions.

Among the annexes of the document titled "Request for Data Minimization," sent by the complainant to the City Council on September 18, 2023, there are recommendations from the Transparency, Citizen Participation, Quality, and Citizen Attention Service of the Provincial Council of Badajoz regarding compliance with data protection regulations in publications of Plenary Agreements and Resolutions. These recommendations have been prepared by the DPD of the Provincial Council of Badajoz, who is the DPD of the City Council of Jerez de los Caballeros.

Below is a partial transcription of their content.

"RECOMMENDATIONS ON COMPLIANCE WITH DATA PROTECTION IN PUBLICATIONS OF PLENARY AGREEMENTS AND RESOLUTIONS

Regarding the adequacy of the publications of plenary agreements, minutes, or resolutions in Official Bulletins as well as on transparency portals, the Transparency, Citizen Participation, Quality, and Citizen Attention Service, and in order to avoid possible actions that could pose risks for the processing of data or violations established in Organic Law 3/2018 on Personal Data Protection and Guarantee of Digital Rights (LODPGDD), the following recommendations are made:

RECOMMENDATIONS

1st) In the minutes of the Plenaries that resolve requests, appeals, or issues raised by citizens, the

personal data of the same must be omitted from the publication, without prejudice to the personal notification of the aforementioned resolutions to the interested party in the manner provided for in Law 39/2015 on Common Administrative Procedure of Public Administrations (LPACAP).

(...)

3rd) Law 19/2013, of December 9, on transparency, access to public information, and good governance establishes a series of obligations of

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active publicity to which the entities and bodies included in the scope of application of the regulation are subject.

However, in accordance with its article 5.3z, the limits on the right of access to public information provided for in article 14 shall apply, particularly those arising from the protection of personal data, regulated in article 15. In this regard, when the information contains specially protected data, publicity will only be carried out after dissociating such data.

For its part, the Second Additional Provision of the LOPDGDD, relating to "Data protection and transparency and access to public information," establishes that active publicity and access to public information regulated by Title I of Law 19/2013, of December 9, on transparency, access to public information, and good governance, as well as the obligations of active publicity established by regional legislation, shall be subject, when the information contains personal data, to the provisions of articles 5.3 and 15 of Law 19/2013, in Regulation (EU) 2016/679, and in this organic law.

Therefore, the public interest in access to information is not unlimited, finding a limit precisely in the guarantee of the rights of the interested parties whose personal data may be affected.

The LTAIBG itself establishes the system for the protection of personal data, stating the following in its article 15:

"1. If the requested information contains personal data revealing ideology, union affiliation, religion, or beliefs, access may only be authorized if there is express and written consent from the affected party, unless the affected party has made the data publicly available prior to the request for access. If the information includes personal data referring to racial origin, health, or sexual life, includes genetic or biometric data, or contains data relating to the commission of criminal or administrative offenses that do not involve public reprimand of the offender, access may only be authorized if there is express consent from the affected party or if it is covered by a norm with the force of law.

2. In general, and unless in the specific case the protection of personal data or other constitutionally protected rights prevails over the public interest in disclosure that prevents it, access will be granted to information containing merely identifying data related to the organization, functioning, or public activity of the body.

3. When the requested information does not contain specially protected data, the body to which the request is directed will grant access after a sufficiently reasoned assessment of the public interest in disclosing the information and the rights of the affected parties whose data appears in the requested information, particularly their fundamental right to the protection of personal data. For the purpose of the aforementioned assessment, the body will particularly consider the following criteria:

a) The lesser harm to the affected parties resulting from the passage of the deadlines established in article 57 of Law 16/1985, of June 25, on the Spanish Historical Heritage.

b) The justification by the applicants of their request in the exercise of a right or the fact that they have the status of researchers and motivate access for historical, scientific, or statistical purposes.

c) The lesser harm to the rights of the affected parties in case the documents only contained merely identifying data of those.

d) The greater guarantee of the rights of the affected parties in case the data contained in the document may affect their privacy or security, or refer to minors.

4. The provisions established in the previous sections shall not apply if access is made after dissociating the personal data in such a way that the identification of the affected persons is prevented.

5. The regulations on the protection of personal data shall apply to the subsequent processing of data obtained through the exercise of the right of access.”

The extensive interpretations of the aforementioned article 15 of the LTAIBG were already warned by the Transparency and Good Governance Council (hereinafter CTBG), which, on June 24, 2015, jointly adopted with the Spanish Agency for the Protection of Data the Criterion CI/002/2015 regarding the interpretation of the application of the limits to the right of access to public information, in which, after analyzing the limits of article 15 of the LTAIBG, establishes successive stages or phases in the process of applying such limits, concluding that its application will not be automatic in any case and that a justified and proportional application is necessary, taking into account the circumstances of the specific case.

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The process of applying these regulations comprises the following stages or successive phases:

First. Assess whether the requested information or information subject to active publicity contains personal data or not (understood as defined in Article 4.1 of the GDPR).

Second. If affirmative, assess whether the data reveals ideology, union affiliation, religion, or beliefs (in which case access may only be authorized if there is express and written consent from the affected party, unless the affected party has publicly disclosed the data prior to the request for access) or refers to racial origin, health, and sexual life, includes genetic or biometric data, or contains data related to the commission of criminal or administrative offenses that do not involve public reprimand of the offender (in which case access may only be authorized if there is express consent from the affected party or if it is protected by a law).

Third. If the personal data contained in the information are not data mentioned in the previous section, assess whether they are exclusively merely identifying data related to the organization, functioning, or public activity of the corresponding body or entity. If affirmative, the information will be published or made available in general, unless in the specific case the protection of personal data and other constitutionally protected rights prevails over the public interest in disclosure.

Fourth. If the personal data are not merely identifying and related to the organization, functioning, or public activity of the body or are not exclusively so, carry out the balancing required by Article 15.3 of the Law.

For these purposes, the public interest is defined in the Explanatory Memorandum of the LTAIBG, which begins by recalling that “Transparency, access to public information, and good governance standards must be the fundamental axes of all political action. Only when the actions of public officials are subject to scrutiny, when citizens can know how decisions that affect them are made, how public funds are managed, or under what criteria our institutions operate can we speak of the beginning of a process in which public authorities begin to respond to a society that is critical, demanding, and that calls for participation from public authorities.”

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Thus, the purpose of the transparency regulations as expressed in the LTAIBG – which, in any case, must be harmonized with respect to what is established by the GDPR and the LOPDGD – is to allow individuals to understand the mechanisms involved in the decision-making processes by public authorities, as well as the use they make of budgetary funds, thereby guaranteeing the participation of citizens in public affairs through a better understanding of the actions of the State.

Therefore, in general terms, it should be understood that, insofar as access to information contributes

to a better understanding of the criteria for the organization and functioning of institutions or the allocation of resources, the existence of a public interest will prevail over the rights to data protection and privacy in the terms and with the exceptions established by the LTAIBG. Conversely, when the information does not contribute to a greater understanding of the organization and functioning of institutions or the allocation of public resources, respect for the rights to data protection or privacy will prevail. This is communicated for the purposes of establishing criteria for action in cases of publishing information both in official bulletins, announcements, and publication on websites.” (the underlining is from the AEPD).

6. Complaint dated February 14, 2024, regarding the content of the Minutes of the ordinary session held by the Honorable Full City Council on November 30, 2023:

As highlighted in the first antecedent, the complaining party has submitted a new complaint to the AEPD regarding the publication of the Minutes of the ordinary session held by the Honorable City Council of Jerez de los Caballeros on November 30, 2023. In said minutes (document 1, which accompanies the complaint of February 14, 2024), the name and two surnames of the complainant appear twice (pages 3 and 4) (proven fact three). The file contains two pieces of evidence collected by the AEPD on March 19, 2024. These reflect that the content of the Minutes of the ordinary session held by the Honorable City Council on November 30, 2023 (in which the name and two surnames of the complaining party appear twice) was published in the section called “Transparency” of the Electronic Headquarters of said City Council (proven fact three).

7. Complaint dated June 3, 2024, regarding the content of the Minutes of the extraordinary and urgent session held by the Honorable City Council on July 20, 2023, and the Minutes of the ordinary session held by the Honorable City Council on September 28, 2023:

The first antecedent reflects that the complaining party has submitted a new complaint to the AEPD regarding the publication of the Minutes of the extraordinary and urgent session held by the Honorable City Council on July 20, 2023 and the Minutes of the ordinary session held by the Honorable City Council on September 28, 2023:

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2023 and of the minutes of the ordinary session held by the Excellent Full City Council on September 28, 2023.

The proceedings of June 12, 2024, show that, once again, despite the recommendations of the Data Protection Delegate, the City Council of Jerez de los Caballeros had included both the name and the two surnames of the claimant, a citizen who had made allegations regarding matters that were to be debated and decided by the Full City Council, hidden behind black rectangular figures.

8. Personal data contained in the minutes of the extraordinary session held by the Excellent Full City Council on March 8, 2021:

8.1. Name and surnames of the claiming party:

Regarding the name and surnames of the claiming party, the Interpretative Criterion CI/004/2015 issued by the Council of Transparency and Good Governance (CTBG) together with the Spanish Agency for Data Protection, dated July 23, 2015, interprets the expression “merely identifying data related to the organization, functioning, or public activity of the body,” contained in Article 15.2 of the LTAIBG, highlighting that it would refer to the name, surnames, address or telephone (professional), position or job held in the administrative organization.

The claiming party was not part of the Full City Council of Jerez de los Caballeros. They were a citizen making allegations regarding a series of Regulations and Municipal Ordinances that were to be debated and approved in that Full Council.

Therefore, the name and surnames of the claimant were not exclusively related to the organization, functioning, or public activity of the body in question, nor would they have been published by reason of the position held by the claimant.

Regarding the minutes that are the subject of the complaint that has led to this file (Minutes of the extraordinary session held by the Excellent Full City Council on March 8, 2021, published on the Electronic Headquarters of the City Council on August 18, 2023), prior to its publication (it was the second occasion on which the City Council published it), it is evident that the criterion of Article 15.3 of the LTAIBG should have been applied, conducting a balancing act between, on one hand, the public interest in the disclosure of the information and, on the other, the protection of the rights and freedoms of the claiming party, in particular, their right to the protection of personal data.

In conducting this balancing act, it would be necessary to consider a series of circumstances:

- That the claimant had submitted a document on March 8, 2022, to the General Registry of the City Council of Jerez de los Caballeros expressing their opposition to the processing of their personal data (name and surnames and NIF) in the Minutes of the extraordinary session held by the Excellent Full City Council on March 8, 2021.

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- That the Data Protection Delegate, a qualified advisor in data protection matters for the City Council, had recommended the:

“a) Anonymization of the name and surname of the interested party, in such a way that their identity cannot be recognized.”

Despite these circumstances and the content of the resolution from the Mayor-Presidency of the City Council of Jerez de los Caballeros, notified to the complainant on March 22, 2022, the content of which has been reproduced in section 2 of this legal basis, the published minutes, which accompany the complaint of August 18, 2023, repeatedly contain the name and surname of the complainant (the name and two surnames appear at least 19 times, along with numerous references to “Mr. A.A.A.”) (proven fact three).

8. 2. Tax Identification Number (NIF):

In relation to the Tax Identification Number (NIF), it is necessary to highlight that the National Identity Document or DNI contains the personal number of the National Identity Document and the corresponding verification character for the Tax Identification Number (NIF). Therefore, if the NIF of a natural person is published, the complete identifying number assigned to that natural person by the Ministry of the Interior is being disclosed, as it appears on their DNI.

The reference to the National Identity Document (DNI) has been analyzed in the Interpretative Criterion CI/004/2015, issued by the Transparency and Good Governance Council (CTBG) together with the Spanish Agency for Data Protection, on July 23, 2015, establishing the following:

“On the one hand, regarding the DNI, whether it corresponds to a public person or a private person, it is understood that the knowledge of this data is not relevant for the purposes of achieving the transparency objective that governs the LTAIBG, since it is fulfilled with the identification carried out through the publication of names and surnames and, where applicable, the identification of the Act of appointment of the signatories who hold a public office within the framework of whose competencies the corresponding contract or agreement is signed. Furthermore, it must be taken into account, on the one hand, that this data exceeds the public sphere of the signatories, which is the relevant criterion considered by the Law to foresee the publication of information and, on the other hand, that its knowledge by third parties could even generate risks of identity theft, especially in the field of electronic transactions.” (the underlining is from the AEPD).

Therefore, this personal data should not have been included in the Minutes of the City Council and its processing is clearly excessive.

9. Personal data contained in the Minutes of the session held by the Excellent Full City Council on November 30, 2023:

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In these minutes, the full name and two surnames of the complainant are reflected on two occasions (pages 3 and 4), when referring to allegations made by them regarding a budget modification that was to be approved by said Full Council (proven fact three).

10. Personal data contained in the Minutes of the extraordinary and urgent session held by the Excellent Full City Council on July 20, 2023, and in the Minutes of the ordinary session held by the Excellent Full City Council on September 28, 2023:

In the first minutes (plenary session of July 20, 2023), the name and two surnames of the complainant appear on two occasions. In the second (plenary session of September 28, 2023), the name and two surnames of the complainant are mentioned on one occasion (proven fact three).

In relation to the three minutes concerning plenary sessions held in 2023 (sections 9 and 10), this Agency refers to what has already been indicated in section 8.1, regarding the processing of the name and surnames of the complainant.

In conclusion, regarding the four minutes subject to complaint, it was not necessary to publish the name and surnames or the NIF of the complainant, making the processing of such personal data excessive. The City Council could have limited itself to reproducing the content of the allegations made and the decision adopted, in view of the same.

The known facts constitute an infringement, attributable to the City Council of Jerez de los Caballeros, for violation of Article 5.1.c) of the GDPR (principle of data minimization).

IV

Classification and qualification of the infringement of Article 5.1 c) of the GDPR

The aforementioned infringement of Article 5.1 c) of the GDPR constitutes one of the infringements classified in Article 83.5 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" provides:

"5. Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;" In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

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For the purposes of the statute of limitations, Article 72 "Very Serious Offenses" of the LOPDGDD states:

"1. Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious offenses and will be subject to a three-year statute of limitations for substantial violations of the articles mentioned therein, particularly the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

V

Violation of Article 32 of the GDPR

Article 32 of the GDPR, concerning the security of processing, states the following:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying probability and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may

include, among others:

- a) the pseudonymization and encryption of personal data;
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
- c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
- d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

(...)

4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data may only process such data on instructions from the controller, unless required to do so by Union or Member State law.”
(underlined by the AEPD).

For its part, Recital 74 of the GDPR provides the following:

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“The responsibility of the controller for any processing of personal data carried out by himself or on his behalf must be established. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing as well as the risk to the rights and freedoms of natural persons.” (the underlining is by the AEPD).

Article 32 of the GDPR does not establish a list of security measures applicable according to the data being processed, but rather states that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the risks of probability and severity for the rights and freedoms of the data subjects. In any case, when assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, as a result of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

In the case analyzed in this file, the City Council attempted to anonymize the minutes of the extraordinary session held by the Honorable Full City Council on March 8, 2021. To this end, it used fifteen black rectangular shapes intended to conceal the NIF of the complainant.

The anonymization measure employed does not fulfill the intended purpose. In the complaint letter dated August 18, 2023, it is stated:

“(…) the document again shows my full name and two surnames 20 times, and my NIF appears temporarily marked with a black rectangle. Once the document is downloaded and opened with a simple PDF reader, it allows selecting and copying the text marked in black, and when pasted, my complete NIF number appears. And by activating the editing and pressing delete on the black rectangle that obscures my NIF, it disappears in all instances.”

Following this, a series of images are presented that show what the complainant indicated.

Furthermore, the evidence collected by the AEPD on June 12, 2024, reflects that the City Council has

attempted to anonymize the content of the minutes of the extraordinary and urgent session held by the Honorable Full City Council on July 20, 2023.

The City Council again used black rectangular shapes to conceal the name and two surnames of the complainant. However, if the text of that minute is copied and pasted into a document, the full content of the minute can be seen, un-anonymized.

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it being possible to visualize the name and both surnames of the claimant (proven fact four).

Therefore, once again, the anonymization measure employed does not fulfill the intended purpose.

On the other hand, by publishing these "anonymized" records, the Secure Verification Code (CSV) has been maintained without anonymization (proven fact three). As indicated by the claimant, if the content of the records is consulted using this Code, access is granted to the original records. In the first case, the complete NIF of the claimant can be seen without any element intended to anonymize it (there are no black rectangles meant to conceal it); in the case of the records from the plenary sessions of July 20 and September 28, 2023, the name and both surnames of the claimant are visible (Document 3 submitted by the claimant, along with their claim of August 18, 2023).

All of this clearly reflects the lack of adoption of technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, in the terms required by Article 32.1 of the GDPR (as highlighted by the Interpretative Criterion CI/004/2015, issued by the Council of Transparency and Good Governance (CTBG) together with the Spanish Agency for Data Protection, on July 23, 2015, partially reproduced in legal basis III; the publication of the NIF could generate risks of identity theft, especially in the context of electronic transactions).

The known facts constitute an infringement, attributable to the City Council of Jerez de los Caballeros, for violation of Article 32 of the GDPR.

VI

Classification and qualification of the infringement of Article 32 of the GDPR

The known facts constitute an infringement, attributable to the respondent party, of Article 32 of the GDPR, classified under Article 83.4 of the GDPR, which under the heading "General conditions for the imposition of administrative fines" states:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 10,000,000 EUR or, in the case of an enterprise, an amount equivalent to 2% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)"

In this regard, the LOPDGDD, in its Article 71 "Infringements" establishes that "Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infringements."

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For the purposes of the statute of limitations for infringements, Article 73 "Infringements considered serious" of the LOPDGDD indicates:

"Based on what is established in Article 83.4 of Regulation (EU) 2016/679, the following infringements are considered serious and shall be subject to a two-year statute of limitations:

(...)

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security adequate to the risk of processing, in the terms required by Article 32.1 of Regulation

(EU) 2016/679. (...)”

VII

Sanction for the infringement of Articles 5.1c) and 32 of the GDPR

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Applicable regime for certain categories of controllers or processors” of the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which they are responsible or processors:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which they are hierarchically subordinate, where appropriate, and to the affected parties who had the status of interested parties, where appropriate.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are

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sufficient indications for this. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regimes that are applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for treatment that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions taken and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

In light of the facts presented, it is considered appropriate to:

- Impose a sanction on the City Council of Jerez de los Caballeros for the violation of Article 5.1 c) of the GDPR, classified under Article 83.5 of the GDPR. The corresponding sanction to be imposed is the declaration of infringement.

- Impose a sanction on the City Council of Jerez de los Caballeros for the violation of Article 32 of the GDPR, classified under Article 83.4 of the GDPR. The corresponding sanction to be imposed is the declaration of infringement.

VIII

Measures

Having confirmed the infringements, it is appropriate to impose on the responsible party the adoption of adequate measures to adjust their actions to the regulations mentioned in this act, in accordance

with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “d) order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame.”

It is warned that failure to comply with the order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, which may lead to the initiation of a further administrative sanctioning procedure.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection

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RESOLVES:

FIRST: DECLARE that the CITY COUNCIL OF JEREZ DE LOS CABALLEROS, with NIF P0607000G, has infringed:

- The provisions of Article 5.1.c) of the GDPR, infringement classified under Article 83.5 of the aforementioned Regulation.
- The provisions of Article 32 of the GDPR, infringement classified under Article 83.4 of the aforementioned Regulation.

SECOND: ORDER the CITY COUNCIL OF JEREZ DE LOS CABALLEROS, with NIF P0607000G, that pursuant to Article 58.2.d) of the GDPR:

1. Within 1 month from the date this resolution becomes final and enforceable, prove that it has complied with the following measure:

- Adequately anonymize the name, surname, and NIF of the complainant in the minutes of the extraordinary session held by the Honorable Full City Council on March 8, 2021, in the minutes of the ordinary session held by the Honorable Full City Council on November 30, 2023, in the minutes of the extraordinary and urgent session held by the Honorable Full City Council on July 20, 2023, and in the minutes of the ordinary session held by the Honorable Full City Council on September 28, 2023.

2. Within 6 months from the date this resolution becomes final and enforceable, prove that it has complied with the following measures:

- The adoption, by that City Council, of adequate measures to ensure that the processing of personal data carried out by the City Council complies with the provisions of Articles 5.1 c) and 32 of the GDPR, preventing situations like those that led to the complaints examined in this sanctioning file from occurring again.

THIRD: NOTIFY this resolution to the CITY COUNCIL OF JEREZ DE LOS CABALLEROS.

FOURTH: COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly

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Contentious administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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